dower the perficient founder of all eleemoſynary ones, the right of viſitation of the former reſults, according to the rule laid down, to the king; and of the latter, to the patron or endower.

THE king being thus conſtituted by law the viſitor of all civil corporations, the law has alſo appointed the place, wherein he ſhall exerciſe this juriſdiction: which is the court of king's bench; where, and where only, all miſbehaviours of this kind of corporations are enquired into and redreſſed, and all their controverſies decided. And this is what I underſtand to be the meaning of our lawyers, when they ſay that theſe civil corporations are liable to no viſitation; that is, that the law having by immemorial uſage appointed them to be viſited and inſpected by the king their founder, in his majeſty's court of king's bench, according to the rules of the common law, they ought not to be viſited elſewhere, or by any other authority. And this is ſo ſtrictly true, that though the king by his letters patent had ſubjected the college of phyſicians to the viſitation of four very reſpectable perſons, the lord chancellor, the two chief juſtices, and the chief baron; though the college had accepted this charter with all poſſible marks of acquieſcence, and had acted under it for near a century; yet, in 1753, the authority of this proviſion coming in diſpute, on an appeal preferred to theſe ſuppoſed viſitors, they directed the legality of their own appointment to be argued: and, as this college was a mere civil, and not an eleemoſynary foundation, they at length determined, upon ſeveral days ſolemn debate, that they had no juriſdiction as viſitors; and remitted the appellant (if aggrieved) to his regular remedy in his majeſty's court of king's bench.

AS to eleemoſynary corporations, by the dotation the founder and his heirs are of common right the legal viſitors, to ſee that that property is rightly employed, which would otherwiſe have deſcended to the viſitor himſelf: but, if the founder has appointed and aſſigned any other perſon to be viſitor, then his aſſignee ſo appointed is inveſted with all the founder's power, in excluſion of